

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008540

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: PHILLIS HAMILTON-
HOLLAND, BY AND THROUGH HER
SUCCESSOR-IN-INTEREST, TRACI
HAMILTON, ET AL

vs.

DEFENDANT: KENTFIELD AND SAN
FRANCISCO SPECIALTY HOSPITAL, INC

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

Counsel Justin Vitug, Esq.’s motion to be relieved as counsel, citing a breakdown in communications with his client, the named Plaintiff, is on calendar. No response from Plaintiff has been received. Defendant has not yet been served. Appearances are **REQUIRED** .

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court’s website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party’s connection is inadequate, the Court may proceed in that party’s absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0009471

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: HAROLD PERRY vs. DEFENDANT: GOODWILL OF THE SAN FRANCISCO BAY	
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NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Appearances are required.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0010410

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: YUKTI MEHTA

vs.

DEFENDANT: RESTORATION
HARDWARE INC.

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendant Restoration Hardware, Inc.’s motion to compel arbitration is DENIED. Plaintiff plausibly alleges a sex-based hostile work environment constituting a ‘sexual harassment dispute’ under 9 U.S.C. § 402 (EFAA). Under controlling authority, the EFAA renders the pre-dispute arbitration agreement unenforceable as to the case motion to compel arbitration is denied.

I. The Arbitration Agreement

Defendant submits a copy of an Arbitration Agreement (the “Agreement”) signed by Plaintiff when she began working at RH Marin. The Agreement provides in part:

This Mutual Agreement to Binding Arbitration of Claims (“Arbitration Agreement”) is entered into by and between Employee, as identified below, and RH US, LLC (“the Company”) (each, a “Party”, and collectively, the “Parties”) as of the date set forth below. Employee and Company recognize that differences may arise between them arising out of Employee’s employment with the Company. The Parties understand and agree that by entering into this Arbitration Agreement, each of them gains the benefits of a speedy, impartial, final, and binding dispute resolution procedure.

Claims Covered By This Arbitration Agreement. *Employee and the Company agree to arbitrate any claim, dispute, and/or controversy that either Employee may have against the Company (or its owners, directors, officers, managers, employees, agents, and parties affiliated with its employee benefit and health plans), or the Company may have against Employee, arising from, related to, or having any relationship or connection whatsoever with Employee’s seeking employment, Employee’s employment, or Employee’s other association with the Company. Included within the scope of this*